

25STLC04281 25STLC04281

County: los-angeles

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Case Number: 25STLC04281 Hearing Date: September 15, 2026 Dept: 26

TENTATIVE RULING:

Defendant Nadia Zay's Motion to Vacate Entry of Default is denied.

Analysis:

Plaintiff

Westlake Services, LLC ("Plaintiff") filed the instant action against Defendants Armaz "LLC" ("Defendant Armaz") and Nadia Zay ("Defendant Zay") on May 30, 2025. On December 1, 2025, the Court entered default against Defendant Zay. On December 22, 2025, Defendant Zay filed a General Denial, despite being in default. Default was entered against Defendant Armaz on January 2, 2026.

On April 6, 2026, the Court heard Plaintiff's Motion to Strike Answer, which it denied. (Minute Order, 04/06/26.) However, on its own motion, the Court struck the Answer for being filed while Defendant Zay was in default. (Ibid.) Defendant Zay filed a Motion to Set Aside Default on April 13, 2026, which was initially set for hearing on May 6, 2026. However, two days prior to the hearing, Defendant asked that the hearing be continued to June 4, 2026. On the same day, Defendant then filed a Notice of Reschedule Hearing and Motion to Set Aside Default (incorrectly identified as an "Answer" on the docket) and set the new, second motion for hearing on June 4, 2026.

On June 4, 2026, the Court denied the second Motion to Set Aside Default without prejudice, noting that it was not accompanied by a memorandum of points and

authorities, or by a supporting declaration. (Minute Order, 06/04/26.)

Defendant Zay then filed another Motion to Set Aside Entry of Default on August 13, 2026, but set it for hearing only four days later. The Court denied that Motion to Set Aside on August 17, 2026. (Minute Order, 08/17/26.)

Defendant has

now filed a fourth Motion to Set Aside Entry of Default on August 21, 2026.

Plaintiff filed an opposition on September 1, 2026.

Discussion

The instant Motion again seeks to vacate the default entered against Defendant Zay on account of mistake, inadvertence, surprise, or excusable neglect. (Motion, p. 1:27-29; Motion filed 08/13/26, p. 1:27-29.) When a party seeks the same relief that was previously denied, it must bring a renewed motion pursuant to Code of Civil Procedure section 1008, subdivision (b). (*California Correctional Peace Officers Ass'n v. Virga* (2010) 181 Cal.App.4th 30, 43, fn. 11; see also *Tate v. Wilburn* (2010) 184 Cal.App.4th 150, 156-157.) When a motion has been denied in whole or in part, the moving party may apply again for the same relief at a later time only upon "new or different facts, circumstances or law." (Code Civ. Proc., § 1008, subd. (b); see *Graham v. Hansen* (1982) 128 Cal.App.3d 965, 969-970.) Also, the statute requires the moving party "to show a satisfactory explanation for failing to provide the evidence earlier, which can only be described as a strict requirement of diligence," the purpose of which is to incentivize parties "to efficiently marshal their evidence." (*Baldwin v. Home Sav. of America* (1997) 59 Cal.App.4th 1192, 1199 [citing *Garcia v. Hejmadi* (1997) 58 Cal.App.4th 674, 689-690].)

The instant

Motion to Vacate is neither brought pursuant to Code of Civil Procedure section 1008, nor fulfills its statutory requirements. Defendant Zay's supporting declaration fails to address the Motion to Vacate filed on August 13, 2026 or the Court's ruling dated August 17, 2026. Nor does the Motion demonstrate new or different facts, circumstances or law that warranted a renewed request for relief from the default. Therefore, the Court lacks the jurisdiction to grant the renewed Motion to Enforce Settlement. (Code Civ. Proc., § 1008, subd. (e); see *Le Francois v. Goel* (2005) 35 Cal.4th 1094, 1106.)

Even if the

Court were to consider the renewed Motion on the merits, it is untimely. The request for relief from the entry of default is brought pursuant to Code of Civil Procedure section 473, subdivision (b), which is no longer available to Defendant. Under that section, an application for relief must be made no more than six months after entry of the order from which relief is sought and must be accompanied by an affidavit of fault attesting to the moving party's or counsel's mistake, inadvertence, surprise or neglect. (Code Civ. Proc., § 473, subd. (b); English v. IKON Business Solutions (2001) 94 Cal.App.4th 130, 143.) The six-month deadline is jurisdictional and not subject to tolling. (Manson, Iver & York v. Black (2009) 176 Cal.App.4th 36, 42.) Default was entered December 1, 2025. The instant Motion was filed more than eight months later and, therefore, cannot be granted under the moving statute.

Conclusion

Based on the foregoing, Defendant Nadia Zay's Motion to Vacate Entry of Default is denied.

Judicial Assistant to give notice.